

Tentative Rulings

June 8, 2026

Department S-17

Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

If you do not wish to submit on a tentative ruling, you must appear for the hearing either in person, via CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If all parties submit on a tentative ruling, it will become the ruling of the court. The tentative may note particular issues on which the court requests the parties to provide further argument. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the Court no longer provides an official Court Reporter to transcribe proceedings in this Department. Parties who wish to have an official record of the proceedings in addition to a minute order must retain a private Certified Shorthand Reporter for the hearing and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the department if you would like a copy of this form. Parties who do not retain a Certified Shorthand Reporter to be designated as an official Court Reporter Pro Tempore are deemed to have waived an official Court Reporter for the proceeding.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

15. *Gardner v. Omnitrans, et al*, Case No. CIVSB2422411
Defendant Omnitrans Motion for Judgment on the Pleadings
6/8/26, 9:00 a.m., S-17

Tentative Ruling

As to the Requests for Judicial Notice: Movant seeks judicial notice of the Claim for Damages, Notice of Insufficiency, Amended Claim for Damages, and Notice of Rejection. (Francia-Gomez Decl., Exhs. A-D.) The Court would **GRANT**, as these are records relating to official acts and files of a public agency.

As to the Motion: The Court would **GRANT** this unopposed motion for judgment on the pleadings (JOP). The Court will hear argument on whether leave to amend is appropriate.

Case Summary

This is, in essence, a personal injury case. Plaintiff alleges that on November 24, 2023, he was a passenger on a bus operated by Defendant Omnitrans. He alleges that the bus was operated recklessly and that, due to the reckless driving, Plaintiff was jostled and struck within the bus, causing him injuries. As such, he filed suit on July 17, 2024, with a form complaint. Following a demurrer, Plaintiff filed the operative First Amended Complaint (FAC) on September 25, 2025. The FAC alleges (1) statutory liability; (2) vicarious statutory liability; and (3) negligence.

Summary of the Law

A party may bring a motion for judgment on the pleadings after filing an answer and the time to demurrer has expired. (Code Civ. Proc., § 438(b)(1) & (f); *Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 548.) If the moving party is the defendant, then a motion for judgment on the pleading (JOP) is limited to the grounds that the court has no jurisdiction over the subject of the cause of action or the complaint fails to state a cause of action. (Code Civ. Proc., § 438(c)(1)(B).) The grounds for a JOP shall appear on the face of the pleading or from any matter judicially noticed. (Code Civ. Proc., § 438(d).)

Analysis

The motion is made on the grounds that (1) the FAC is barred by Government Code section 945.6(a)(1) because it was filed more than six months after the Notice of Rejection; (2) The Notice of Rejection from December 14, 2023 complied with Government Code section 913 and triggered a six-month statute of limitations; (3) while the FAC references a subsequent claim from January 11, 2024 [FAC, ¶¶14-17], that claim was not properly presented under Government Code section 915 and is legally ineffective; and (4) Plaintiff's claim for punitive damages fails as a matter of law because Omnitrans is a public entity immune under Government Code section 818. The arguments are uncontested. A failure to oppose a motion may be deemed consent to the granting of the motion. (Rules of Court, rule 8.54(c); also *Giles v.*

Horn (2002) 100 Cal.App.4th 206,228 [challenge to judicial notice motion forfeited by failure to file opposition].)

15. *Avila v. California Premier Roofscapes, Inc., et al*, Case No. CIVSB2425309
Defendants' Motion to Compel Response to Special Interrogatories, Set One
Defendants' Motion to Compel Response to Requests for Production, Set Two
6/8/26, 9:00 a.m., Dept. S-17

The Court would find the motions **MOOT**.

Consistent with the prior discovery rulings the week prior: Substantive, supplemental responses have been provided and the motions are now moot. As to sanctions, the Court would decline to impose them. It appears that there is substantial justification in that Plaintiff sought extension of the deadline before providing objection-only responses and was intent on providing substantive responses. Moreover, the Court notes that no separate statements were provided. (Cal. Rules of Court, rule 3.1345(a)(2) & (3) [requiring separate statement when compelling further responses].) Here, it appears that movants moved as if there had been no prior responses. While the initial responses were couched as objection-only, they still existed.
